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Novato woman sentenced for DUI crash

Driver to serve 12 years in prison for February incident near Petaluma that killed her mother, 61, aunt, 60

By Colin Atagi
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A Novato woman received a 12-year prison sentence Wednesday, after she was convicted in connection with a Feb. 11 crash that killed her 61-year-old mother and 60-year-old aunt on Highway 101 near Petaluma.

Kenia Alegria was sentenced by Sonoma County Judge Robert LaForge after pleading no contest Aug. 24 to two counts of gross vehicular manslaughter while intoxicated. Although Alegria was convicted of two counts of gross vehicular manslaughter, one count carries a 10-year prison sentence and the other carries two years as per California law on sentencing terms.

She was sentenced during a five-minute hearing that was attended by a handful of her supporters but ended without any statements being made publicly.

"This was a tragic case and my client expresses sincere remorse," Alegria's public defender, Joe Bisbiglia, told The Press Democrat after the hearing.

Killed in the crash were Alegria's mother, Teresa Renderos, and aunt, Flor Vasquez DeSolis. Renderos was pronounced dead at the scene of the crash and Vasquez died more than a week later on Feb. 20, investigators said earlier this year.

Investigators with the California Highway Patrol said Renderos and Vasquez, who weren't wearing seatbelts, were thrown from a BMW driven by Alegria, who was suspected of driving under the influence of drugs or alcohol. The original criminal complaint filed by the Sonoma County District Attorney's Office shows Alegria's blood-alcohol content on the day of the crash was at least 0.20, more than double the legal limit of 0.08.

Bisbiglia said Alegria was the main source of transportation for her mother and aunt. They socialized with each other and were on their way home from a restaurant when the crash occurred.

Alegria was injured in the crash and arrested about a week later after being released from Providence Santa Rosa Memorial Hospital.

She made her first court appearance Feb. 19, before her aunt died, and was charged at the time with murder, gross vehicular manslaughter while intoxicated and two counts related to DUI. Prosecutors filed additional counts of murder and vehicular manslaughter after Vasquez's death.

CHP Officer David deRutte said in February the murder charge was recommended because Alegria had a previous DUI arrest in January 2022.

In that incident, Alegria was charged with misdemeanor DUI in Mendocino County Superior Court and faced a special allegation that her blood-alcohol content was at least 0.15. She pleaded guilty in March 2023 and was placed on probation for three years. A judge ordered her not to drive with any amount of alcohol in her system during her probation period, Marin County court records show.

Alegria entered her plea in the Sonoma County case before reaching the preliminary hearing stage in the matter.

"She wanted to accept responsibility early on," Bisbiglia said.

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Vehicle strikes SMART train

A SMART employee inspects a train after a vehicle struck its side near the East Railroad Avenue crossing near Penngrove on Tuesday. No injuries were reported in the collision. **COURTESY OF TYLER SILVY**

Non-injury collision near Penngrove Tuesday is fourth September crash

By Isabel Beer
THE PRESS DEMOCRAT

A vehicle struck the side of a Sonoma-Marin Area Rail Transit train near Penngrove during the evening commute Tuesday, Sept. 29, causing delays of up to 45 minutes but leaving the driver and those aboard the train uninjured, officials said.

The crash was the eighth involving a SMART train so far this year and the fourth in September, according to SMART spokesperson Julia Gonzalez. Officials previously determined the majority of SMART collisions that have occurred this year have involved people experiencing mental health crises.

The collision happened shortly after 5 p.m. Tuesday at the East Railroad Avenue rail crossing, according to the California Highway Patrol and SMART. The vehicle was traveling east on East Railroad Avenue when its driver failed to stop for the lowered crossing gates and warning lights and struck the side of the northbound train, CHP Officer David deRutte said.

Gonzalez said the train was carrying 113 passengers and two crew members at the time of the collision. No injuries were reported by the driver of the vehicle nor anyone onboard the train.

The train, listed as Trip 30 on SMART's schedule, was able to continue north to Cotati Station following the collision, Gonzalez said. The crash caused delays of between 30 and 45 minutes for other trains later Tuesday evening as service recovered, she said.

The cause for Tuesday's crash is still under investigation by the CHP.

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California will add 'Non-Ultraprocessed Certified' seal to foods: What that means

By Karen Garcia
LOS ANGELES TIMES

California is now on track to be the first state to create a front-of-package label to help consumers identify foods in the grocery store aisles that are not ultraprocessed.

Gov. Gavin Newsom signed Assembly Bill 2244 into law on Monday, which would "make a label clear in the grocery store so you can actually figure out what (foods are) the better and healthier choice," the governor said in a video on YouTube.

The move comes despite the lack of a nationwide definition for what makes a food "ultraprocessed." Some experts argue that a patchwork of state-by-state labeling, like California's, could confuse the food industry as a whole.

Experts say ultraprocessed foods are those that have one or more ingredients that wouldn't be found in a kitchen. Existing state law defines ultraprocessed foods, for school-provided meals, as any food or beverage that contains high amounts of saturated fat, sodium, added sugar or non-nutritive sweetener — the latter can be artificial (aspartame) or plant-based (Stevia) but are low in calories.

WHAT THE NEW LAW DOES

Under Assembly Bill 2244, the California Department of Public Health will be tasked with creating a standard non-ultraprocessed-food label that will be modeled after the widely recognized "USDA Organic" label, according to a news release from Newsom's office.

"The seal will provide consumers with a simple, trustworthy way to identify healthier options with a quick glance," the release states.

The state public health department will be required to accredit agents to certify food products as non-ultraprocessed no later than June 1, 2028.

Non-ultraprocessed foods that bear the new label will be listed on a public website maintained by the state public health department.

The bill also will require grocery stores in California to prominently display products bearing the "Non-Ultraprocessed Certified" seal.

A Vons market in Los Angeles' Westchester neighborhood in 2024. **GENARO MOLINA — LOS ANGELES TIMES**

A MOVE TO 'EMPOWER CONSUMERS'

The term "ultraprocessed foods" was coined by nutritional epidemiologist Carlos Monteiro and his team at the University of São Paulo in the early 2000s.

They developed the Nova system, which classifies the degree to which a food product is processed, from minimal to ultraprocessed.

As the Mayo Clinic notes, "processing" can include washing, chopping, drying, packaging and a number of other things. Foods "cross into ultra-processed territory when they contain preservatives, flavorings and other food additives, or substances ... to enhance flavor and increase shelf life."

Researchers throughout the United States widely regard the Nova system when studying the correlation between the prolonged consumption of ultraprocessed foods and resulting health implications because the U.S. doesn't have a definition of its own.

The U.S. Food and Drug Administration is currently working with the U.S. Department of Agriculture to develop a uniform definition of ultraprocessed foods.

"While Washington D.C. is paralyzed by inaction, Republicans and Democrats in California are joining forces to empower consumers to avoid harmful ultra-processed foods," said Assemblymember Jesse Gabriel (D-Encino), author of Assembly Bill 2244. "Parents shouldn't need a Ph.D. in chemistry to understand what they're feeding their kids."

REASONS FOR CAUTION

Last year, researchers with USC's Keck School of Medicine published a study that found that an increase in ultraprocessed food intake was associated with a higher risk of prediabetes, or early-stage high blood sugar that can lead to diabetes — part of their study process included taking blood samples.

However, experts at UC Davis have previously noted that the vast majority of research on ultra-processed foods has been observational, meaning people are asked to report what they eat and scientists take that information and use statistical analysis to explore associations with various health outcomes.

Many consumers struggle to distinguish between minimally processed and highly processed products due to confusing labels and marketing practices.

Anna Rosales, of the Institute of Food Technologists, said California's new food label may sound straightforward, but for food scientists, regulators, manufacturers, and others across the food system, the new law raises a more complicated question.

"What are the implications of individual states creating certification programs around UPFs while the federal government is still working to define the term," said Rosales, vice president of science and policy for the nonprofit society of food-science and -technology professionals, in a news release.

As California ushers in its certification label, she said, other states could adopt similar certification programs or develop their own definitions of ultraprocessed foods while a uniform federal definition is still in the works.

Newsom signs newsroom subsidy bill

Governor issues warning of Trump's 'assault on the free press'

By Paul Rogers
BAY AREA NEWS GROUP

Saying that a free press is essential to holding government accountable, Gov. Gavin Newsom on Wednesday signed a bill providing tax credits to newspapers, local broadcast stations and digital media companies that retain and hire journalists in California.

The measure, AB 2222, by Assemblymembers Buffy Wicks, D-Oakland and Chris Ward, D-San Diego, with credits valued at roughly $55 million a year over five years, is intended to slow the loss reporters and the closure of newspapers across the state, particularly in small communities, who cover city council meetings, court trials, high school sports and other community events.

Gavin Newsom

Because of economic pressures and consolidation, California has lost 41% of its local newspapers since 2005, according to a study from Northwestern University, amid a similar 39% decline nationwide, due in large part to loss of advertising to large tech companies like Google and Meta, and the loss of classified ads to websites like craigslist, eBay and others.

At a signing ceremony in his Sacramento office on Wednesday, Newsom contrasted California's moves to shore up journalism with Trump's decisions to slash funding for PBS and NPR, sue news organizations who have published stories critical of him, and ban media outlets such as CNN in recent weeks from White House events.

"We think this is nation-leading and could not have come at a more important time," Newsom said of the new law. "Darkness in Washington D.C., and daylight here in California. The contrast could not be more acute."

Starting in 2027 and continuing for five years, the law Newsom signed Wednesday will provide tax credits of $20,000 per full-time journalist at a newsroom for the first five positions and $15,000 for each additional journalist. Part-time journalist jobs would receive $7,500 credits. A $15,000 "new hire" credit would be awarded to news organizations that expand their newsroom's headcount of journalists.

The bill was supported by media organizations like the California Broadcasters Association, California Independent News Alliance, and California News Publishers Association, of which the Bay Area News Group is a member.

"I'm delighted that he agreed to sign it," said Chuck Champion, president of the California News Publisher's Association. "It was a long hard fight. He explained why he had concerns. I'm glad we have the bill that will begin to solve the problem. But we are a long way away of the problem being completely rectified."

"This is a step in the right direction. But we are going to have to do a lot more."

The industry needs stronger laws to stop artificial intelligence software from stealing copyrighted material, Champion said, and to require companies like Google and Meta to pay news companies when they link to news stories and sell advertising around them.

The bill was opposed by the California Taxpayers Association and the California Chamber of Commerce. They object to its funding source — eliminating the ability of corporations in California to deduct executive compensation above $1 million.

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